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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:10-cv-02201-CMA-KMT

Green v. Brennan
Assigned to: Senior Judge Christine M. Arguello
Referred to: Magistrate Judge Kathleen M. Tafoya
Case in other court: USCA, 13-01096
Cause: 42:2000e Job Discrimination (Employment)

Date Filed: 09/08/2010
Date Terminated: 08/08/2018
Jury Demand: Plaintiff
Nature of Suit: 442 Civil Rights: Jobs
Jurisdiction: U.S. Government Defendant

Plaintiff

Marvin Green

represented by **Brian S. Wolfman**
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V.

Defendant

Megan J. Brennan

*Postmaster General, United States Postal
Service*

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Defendant

Patrick R. Donahoe

*Postmaster General, United States Postal
Service*

TERMINATED: 04/24/2017

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Defendant

John E. Potter
 Postmaster General, United States Postal
 Service
 TERMINATED: 07/27/2011

represented by **Jamie L. Mendelson**
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 TERMINATED: 04/25/2011

Nathalie Erin Cohen
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 TERMINATED: 02/06/2013

Date Filed	#	Docket Text
09/08/2010	<u>1</u>	COMPLAINT-CIVIL RIGHTS (JURY TRIAL DEMAND) against John E. Potter (Filing fee \$ 350, Receipt Number 031136) Summons Issued, filed by Marvin Green. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Receipt)(sah,) Modified on 9/9/2010 to correct the last name of the plaintiff (sah,). (Entered: 09/09/2010)
09/09/2010	2	Docket Annotation re: <u>1</u> Complaint. Entry modified on 9/9/2010 to correct the last name of the plaintiff. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 09/09/2010)
10/20/2010	<u>3</u>	NOTICE of Entry of Appearance by Jamie L. Mendelson on behalf of All Defendants (Mendelson, Jamie) (Entered: 10/20/2010)
11/03/2010	<u>4</u>	NOTICE of Entry of Appearance by Marilyn Cain Gordon on behalf of Marvin Green (Gordon, Marilyn) (Entered: 11/03/2010)
11/27/2010	<u>5</u>	STIPULATION for Extension of Time to Respond to the Complaint by Defendant John E. Potter. (event changed into a Motion for Extension of Time) (Mendelson, Jamie) Modified on 11/29/2010 to change event into a motion (sah,). (Entered: 11/27/2010)

11/29/2010	6	Docket Annotation re: 5 MOTION for Extension of Time to File Answer or Otherwise Respond. Entry modified on 11/29/2010 to change event into a motion,pursuant to request by chambers. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 11/29/2010)
11/29/2010	7	MINUTE ORDER. The Stipulation of Extension of Time to Respond to the Complaint 5 is GRANTED up to and including December 28, 2010, by Judge Lewis T. Babcock on 11/29/10.(ltbcd,) (Entered: 11/29/2010)
12/28/2010	8	MOTION to Dismiss 1 Complaint for Lack of Jurisdiction, MOTION to Dismiss for Failure to State a Claim, MOTION for More Definite Statement by Defendant John E. Potter. (Mendelson, Jamie) Modified on 12/29/2010 to create linkage (sah,). (Entered: 12/28/2010)
01/06/2011	9	MOTION for Extension of Time to, MOTION for Extension of Time to File Response/Reply as to 8 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss <i>for Failure to State a Claim</i> MOTION for More Definite Statement by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 01/06/2011)
01/07/2011	10	MINUTE ORDER. 9 Plaintiff's Unopposed Motion for Extension of Time to Respond to Defendant's Motion to Dismiss is granted up to and including 2/8/2011, by Judge Lewis T. Babcock on 1/7/11.(mnf,) (Entered: 01/07/2011)
02/08/2011	11	RESPONSE to 8 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss <i>for Failure to State a Claim</i> MOTION for More Definite Statement filed by Plaintiff Marvin Green. (Attachments: # 1 Exhibit)(Mosby, John) (Entered: 02/08/2011)
02/11/2011	12	Unopposed MOTION for Extension of Time to File Response/Reply as to 8 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss <i>for Failure to State a Claim</i> MOTION for More Definite Statement by Defendant John E. Potter. (Attachments: # 1 Proposed Order (PDF Only))(Mendelson, Jamie) (Entered: 02/11/2011)
02/15/2011	13	MINUTE ORDER. Defendants Unopposed Motion for Extension of Time to File a Reply Brief in Support of Defendants Motion to Dismiss 12 is GRANTED up to and including 3/4/2011. By Judge Lewis T. Babcock on 2/15/2011.(sah,) (Entered: 02/15/2011)
02/17/2011	14	NOTICE of Entry of Appearance <i>as co-counsel</i> by Elisa Julie Moran on behalf of Marvin Green (Moran, Elisa) (Entered: 02/17/2011)
03/04/2011	15	REPLY to Response to 8 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss <i>for Failure to State a Claim</i> MOTION for More Definite Statement filed by Defendant John E. Potter. (Mendelson, Jamie) (Entered: 03/04/2011)
04/18/2011	16	NOTICE of Entry of Appearance by Nathalie Erin Cohen on behalf of All Defendants (Cohen, Nathalie) (Entered: 04/18/2011)
04/22/2011	17	Unopposed MOTION to Withdraw as Attorney by Defendant John E. Potter. (Attachments: # 1 Proposed Order (PDF Only))(Mendelson, Jamie) (Entered: 04/22/2011)
04/25/2011	18	MINUTE ORDER. The Unopposed Motion to Withdraw as Counsel 17 is GRANTED. By Judge Lewis T. Babcock on 4/25/2011.(sah,) (Entered: 04/25/2011)
07/12/2011	19	ORDER. Defendants Motion to Dismiss Plaintiffs four retaliation claims 8 is DENIED AS MOOT; Defendants Motion to Dismiss Plaintiffs constructive discharge claim is DENIED; Defendants request for a more definite statement is GRANTED; and Plaintiff shall file an amended complaint within 14 days that substantially conforms to the guidelines described above. By Judge Lewis T. Babcock on 7/12/2011.(sah,) (Entered: 07/12/2011)

07/26/2011	20	AMENDED COMPLAINT against John E. Potter, filed by Marvin Green.(Mosby, John) (Entered: 07/26/2011)
08/02/2011	21	Stipulated MOTION for Extension of Time to File Answer or Otherwise Respond re 20 Amended Complaint by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 08/02/2011)
08/03/2011	22	MINUTE ORDER. The Stipulation of Extension of Time to Respond to Amended Complaint 21 is GRANTED up to and including 8/23/2011. By Judge Lewis T. Babcock on 8/3/2011.(sah,) (Entered: 08/03/2011)
08/23/2011	23	MOTION to Dismiss 20 for Lack of Jurisdiction Pursuant to Fed. R. Civ. P. 12(b)(1) by Defendant Patrick R. Donahoe. (Attachments: # 1 Exhibit A - Feb. 27, 2010, EEO Complaint, # 2 Exhibit B - EEOC Dismissal of Feb. 27, 2010, EEO Complaint, # 3 Exhibit C - OFO Decision on Feb. 27, 2010, EEO Complaint, # 4 Exhibit D - Apr. 23, 2010, EEO Complaint, # 5 Exhibit E - Notice of Issues to be Investigated for Apr. 23, 2010, EEO Complaint, # 6 Exhibit F - EEOC Dismissal of Apr. 23, 2010, EEO Complaint, # 7 Exhibit G - Investigative Summary Excerpt for Apr. 23, 2010, EEO Complaint)(Cohen, Nathalie) Modified on 8/24/2011 to create linkage (sah,). (Entered: 08/23/2011)
09/12/2011	24	RESPONSE to 23 MOTION to Dismiss for Lack of Jurisdiction Pursuant to Fed. R. Civ. P. 12(b)(1) filed by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit)(Mosby, John) Modified on 9/13/2011 to remove repetitive text (sah,). (Entered: 09/12/2011)
09/26/2011	25	REPLY to Response to 23 MOTION to Dismiss for Lack of Jurisdiction Pursuant to Fed. R. Civ. P. 12(b)(1) filed by Defendant Patrick R. Donahoe. (Cohen, Nathalie) Modified on 9/27/2011 to remove repetitive text (sah,). (Entered: 09/26/2011)
10/28/2011	26	ORDER. Defendants Motion to Dismiss Amended Complaint Pursuant to Fed. R. Civ. P. 12(b)(1) 23 is GRANTED. By Judge Lewis T. Babcock on 10/28/2011.(sah,) (Entered: 10/28/2011)
11/14/2011	27	ANSWER to 20 Amended Complaint by Patrick R. Donahoe.(Cohen, Nathalie) (Entered: 11/14/2011)
11/18/2011	28	ORDER OF REFERENCE to United States Magistrate Judge Kathleen M. Tafoya. By Judge Lewis T. Babcock on 11/18/2011. (sah,) (Entered: 11/18/2011)
11/30/2011	29	ORDER Scheduling Conference set for 12/29/2011 10:15 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 11/30/2011. (kmtcd) (Entered: 11/30/2011)
12/22/2011	30	Proposed Scheduling Order by Plaintiff Marvin Green. (Mosby, John) (Entered: 12/22/2011)
12/29/2011	31	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Kathleen M. Tafoya: Scheduling Conference held on 12/29/2011. Discovery due by 7/27/2012. Dispositive Motions due by 8/30/2012. Settlement Conference set for 2/16/2012 at 1:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. Final Pretrial Conference set for 9/25/2012 at 9:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. (FTR: C. Coomes -- Courtroom C-201) (mehcd) (Entered: 12/30/2011)
12/29/2011	32	SCHEDULING ORDER: by Magistrate Judge Kathleen M. Tafoya on 12/29/2011. (mehcd) (Entered: 12/30/2011)

01/10/2012	33	MINUTE ORDER. This will confirm that this matter is set for trial to a jury for five (5) days commencing 4/22/2013 at 9:00 a.m. in Courtroom C401, Byron G. Rogers United States Courthouse, 1929 Stout Street, Denver, Colorado. A trial preparation conference is set 3/22/2013 at 9:00 a.m. By Judge Lewis T. Babcock on 1/10/2012. (sah,) (Entered: 01/10/2012)
02/16/2012	34	MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Settlement Conference held on 2/16/2012. No settlement was reached as to any claims in this action. (kmtcd) (Entered: 02/17/2012)
02/24/2012	35	Unopposed MOTION for Protective Order by Defendant Patrick R. Donahoe. (Attachments: # 1 Proposed Order (PDF Only))(Cohen, Nathalie) (Entered: 02/24/2012)
02/27/2012	36	MEMORANDUM regarding 35 Unopposed MOTION for Protective Order filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 2/27/2012. Text Only Entry (eseam) (Entered: 02/27/2012)
02/27/2012	37	MINUTE ORDER granting 35 Motion for Entry of Protective Order. The proposed protective order will be entered. By Magistrate Judge Kathleen M. Tafoya on 2/27/12. Text Only Entry(kmtlc1) (Entered: 02/27/2012)
02/27/2012	38	STIPULATED PROTECTIVE ORDER by Magistrate Judge Kathleen M. Tafoya on 2/27/2012. (kmtcd) Modified on 2/28/2012 to include the complete title of the order(sah,). (Entered: 02/27/2012)
03/13/2012	39	Stipulated MOTION for Extension of Time to <i>Respond to Discovery Requests pursuant to Local Rule 6.1A</i> by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 03/13/2012)
03/14/2012	40	MEMORANDUM regarding 39 Stipulated MOTION for Extension of Time to Respond to Discovery Requests pursuant to Local Rule 6.1A filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya. By Judge Lewis T. Babcock on 3/14/2012. Text Only Entry (sah,) (Entered: 03/14/2012)
04/18/2012	41	First MOTION to Compel <i>Discovery</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit)(Mosby, John) (Entered: 04/18/2012)
04/19/2012	42	MEMORANDUM regarding 41 First MOTION to Compel <i>Discovery</i> filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 4/19/2012. Text Only Entry (eseam) (Entered: 04/19/2012)
04/19/2012	43	MINUTE ORDER Setting Hearing on Motion: Motion Hearing set for 6/20/2012 at 1:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya regarding 41 First MOTION to Compel Discovery. By Magistrate Judge Kathleen M. Tafoya on 4/19/12. Text Only Entry (kmtlc1) (Entered: 04/19/2012)
04/19/2012	44	Unopposed MOTION for Extension of Time to File Response/Reply as to 41 First MOTION to Compel <i>Discovery</i> by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 04/19/2012)
04/20/2012	45	MEMORANDUM regarding 44 Unopposed MOTION for Extension of Time to File Response/Reply as to 41 First MOTION to Compel <i>Discovery</i> filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 4/20/2012. Text Only Entry (eseam) (Entered: 04/20/2012)
04/20/2012	46	MINUTE ORDER granting 44 Motion for Extension of Time to Respond to Plaintiff's Motion to Compel. Defendant shall file its response no later than May 21, 2012. By Magistrate Judge Kathleen M. Tafoya on 4/20/12. Text Only Entry(kmtlc1) (Entered: 04/20/2012)

05/07/2012	47	Second MOTION to Compel <i>Discovery</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Proposed Order (PDF Only))(Mosby, John) (Entered: 05/07/2012)
05/09/2012	48	MEMORANDUM regarding 47 Second MOTION to Compel <i>Discovery</i> filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya, by Judge Lewis T. Babcock on 5/9/12. Text Only Entry (lygsl,) (Entered: 05/09/2012)
05/09/2012	49	MINUTE ORDER Setting Hearing on Motion: Motion Hearing set for June 20, 2012 at 1:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya regarding 47 Second MOTION to Compel <i>Discovery</i> . Defendant shall file his response no later than May 31, 2012. Plaintiff shall file his reply no later than June 18, 2012. By Magistrate Judge Kathleen M. Tafoya on 5/9/12. Text Only Entry (kmtlc1) (Entered: 05/09/2012)
05/21/2012	50	MOTION for Extension of Time to <i>Respond to Def 2nd Discovery Requests</i> by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 05/21/2012)
05/21/2012	51	RESPONSE to 41 First MOTION to Compel <i>Discovery</i> filed by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 05/21/2012)
05/22/2012	52	MEMORANDUM regarding 50 MOTION for Extension of Time to Respond to Def 2nd <i>Discovery Requests</i> filed by Marvin Green. Motions referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 05/22/12. Text Only Entry (jjhsl,) (Entered: 05/22/2012)
05/22/2012	53	MINUTE ORDER granting 50 Plaintiff's Motion for Extension of Time to Respond to Defendant's Second Requests for Production of Documents and Interrogatories. Plaintiff shall respond no later than May 31, 2012. By Magistrate Judge Kathleen M. Tafoya on 5/22/12. Text Only Entry(kmtlc1) (Entered: 05/22/2012)
05/30/2012	54	RESPONSE to 47 Second MOTION to Compel <i>Discovery</i> filed by Defendant Patrick R. Donahoe. (Attachments: # 1 Declaration of Nathalie Cohen, # 2 Cohen Decl. Ex. 1 - February 13, 2012, Email, # 3 Cohen Decl. Ex. 2 - February 17, 2012, Letter, # 4 Cohen Decl. Ex. 3 - February 27, 2012, Email, # 5 Cohen Decl. Ex. 4 - April 18, 2012, Emails, # 6 Cohen Decl. Ex. 5 - May 8, 2012, Email, # 7 Declaration of Lora Avila, # 8 Declaration of Kenneth Price)(Cohen, Nathalie) (Entered: 05/30/2012)
05/30/2012	55	REPLY to Response to 41 First MOTION to Compel <i>Discovery</i> filed by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit)(Mosby, John) (Entered: 05/30/2012)
06/06/2012	56	Unopposed MOTION for Extension of Time to <i>Designate Rebuttal Experts</i> by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 06/06/2012)
06/07/2012	57	MEMORANDUM regarding 56 Unopposed MOTION for Extension of Time to Designate Rebuttal Experts filed by Patrick R. Donahoe. Motions referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 06/07/12. Text Only Entry (jjhsl,) (Entered: 06/07/2012)
06/07/2012	58	MINUTE ORDER granting 56 Motion for Extension of Time to Designate Rebuttal Experts. The Deadline for Designating Rebuttal Experts is extended to 7/13/2012. By Magistrate Judge Kathleen M. Tafoya on 6/7/2012. Text Only Entry (kmtlc2) (Entered: 06/07/2012)
06/11/2012	59	REPLY to Response to 47 Second MOTION to Compel <i>Discovery</i> filed by Plaintiff Marvin Green. (Gordon, Marilyn) (Entered: 06/11/2012)

06/18/2012	60	MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Discovery Hearing held on 6/18/2012. (FTR: Courtroom C-201) (kmtcd) (Entered: 06/19/2012)
06/20/2012	61	MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Motion Hearing held on 6/20/2012, granting in part 41 Motion to Compel and denying 47 Motion to Compel. Discovery due by 8/31/2012. Dispositive Motions due by 9/28/2012. Final Pretrial Conference set for 11/29/2012 10:00 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. (FTR: Courtroom C-201) (kmtcd) (Entered: 06/21/2012)
08/06/2012	62	Unopposed MOTION for Extension of Time to <i>complete depositions</i> by Plaintiff Marvin Green. (Moran, Elisa) (Entered: 08/06/2012)
08/07/2012	63	MEMORANDUM regarding 62 Unopposed MOTION for Extension of Time to <i>complete depositions</i> filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 8/7/2012. Text Only Entry (eseam) (Entered: 08/07/2012)
08/07/2012	64	MINUTE ORDER granting 62 Motion for Extension of Time to Complete Depositions. The discovery cutoff is extended to 9/14/2012 for the purpose of completing depositions. By Magistrate Judge Kathleen M. Tafoya on 8/7/12. Text Only Entry(kmtlc1) (Entered: 08/07/2012)
08/21/2012	65	MINUTE ORDER Final Pretrial Conference set for 12/4/2012 10:00 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 8/21/2012. Text Only Entry (kmtcd) (Entered: 08/21/2012)
09/11/2012	66	First MOTION to Continue <i>Pretrial Conference</i> by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 09/11/2012)
09/12/2012	67	MEMORANDUM regarding 66 First MOTION to Continue Pretrial Conference filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya, by Judge Lewis T. Babcock on 9/12/12. Text Only Entry (lygsl,) (Entered: 09/12/2012)
09/12/2012	68	MINUTE ORDER granting 66 Motion to Continue Final Pretrial Conference. The Final Pretrial Conference set for 12/04/2012 is VACATED and RESET to 1/8/2013 at 9:45 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. The proposed Final Pretrial Order shall be filed no later than 1/2/2013. By Magistrate Judge Kathleen M. Tafoya on 9/12/12. Text Only Entry(kmtlc1) (Entered: 09/12/2012)
09/14/2012	69	TRANSCRIPT of Motion Hearing held on 06/20/2012 before Magistrate Judge Tafoya. Pages: 1-54. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 12/17/2012. (Avery Woods Reporting,) (Entered: 09/14/2012)
09/17/2012	70	MOTION for Extension of Time to <i>Complete Discovery</i> by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 09/17/2012)

09/18/2012	71	MEMORANDUM regarding 70 MOTION for Extension of Time to Complete Discovery filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya, by Judge Lewis T. Babcock on 9/18/12. Text Only Entry (lygsl,) (Entered: 09/18/2012)
09/18/2012	72	MINUTE ORDER granting 70 Motion for Extension of Time to Take and Complete Depositions Outside of Discovery Cutoff. The discovery cutoff is extended to 10/15/2012 for the purpose of completing the depositions of Linda Delancy and Kenneth Price only. No further extensions of the discovery cutoff will be granted. By Magistrate Judge Kathleen M. Tafoya on 9/18/12. Text Only Entry(kmtlc1) (Entered: 09/18/2012)
09/20/2012	73	MOTION for Sanctions by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Proposed Order (PDF Only))(Mosby, John) (Entered: 09/20/2012)
09/21/2012	74	MEMORANDUM regarding 73 MOTION for Sanctions filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya, by Judge Lewis T. Babcock on 9/21/12. Text Only Entry (lygsl,) (Entered: 09/21/2012)
09/21/2012	75	Unopposed MOTION for Extension of Time to <i>File Dispositive Motions</i> by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 09/21/2012)
09/24/2012	76	MEMORANDUM regarding 75 Unopposed MOTION for Extension of Time to <i>File Dispositive Motions</i> filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 9/24/2012. Text Only Entry (eseam) (Entered: 09/24/2012)
09/25/2012	77	ORDER granting 75 Defendants Unopposed Motion for Extension of TimeTo File Dispositive Motions. Dispositive Motions due by 11/5/2012. Entered by Magistrate Judge Kathleen M. Tafoya on 09/25/2012. Text Only Entry(kmt,) (Entered: 09/25/2012)
09/26/2012	78	MINUTE ORDER Setting Hearing on Motion: Motion Hearing set for 11/14/2012 at 1:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya regarding 73 MOTION for Sanctions. By Magistrate Judge Kathleen M. Tafoya on 9/26/12. Text Only Entry (kmtlc1) (Entered: 09/26/2012)
09/26/2012	79	MOTION to Reset <i>November 14, 2012 Hearing</i> by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 09/26/2012)
09/27/2012	80	MEMORANDUM regarding 79 MOTION to Reset <i>November 14, 2012 Hearing</i> filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 9/27/2012. Text Only Entry (eseam) (Entered: 09/27/2012)
09/27/2012	81	MINUTE ORDER granting 79 Motion to Continue and Reset Hearing. The Motion Hearing is RESET to 11/20/2012 at 9:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 9/27/12. Text Only Entry(kmtlc1) (Entered: 09/27/2012)
10/15/2012	82	RESPONSE to 73 MOTION for Sanctions filed by Defendant Patrick R. Donahoe. (Attachments: # 1 Exhibit 1 - Hearing Transcript Excerpt, # 2 Exhibit 2 - Defendant's Interrogatory Responses Excerpt, # 3 Exhibit 3 - David Knight Deposition Transcript Excerpt, # 4 Declaration of Charmaine Ehrenshaft)(Cohen, Nathalie) (Entered: 10/15/2012)
10/22/2012	83	First MOTION for Extension of Time to File Response/Reply as to 73 MOTION for Sanctions by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only)) (Mosby, John) (Entered: 10/22/2012)
10/23/2012	84	MEMORANDUM regarding 83 First MOTION for Extension of Time to File Response/Reply as to 73 MOTION for Sanctions filed by Marvin Green. Motion referred

		to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 10/23/2012. Text Only Entry (eseam) (Entered: 10/23/2012)
10/23/2012	85	MINUTE ORDER granting 83 Motion for Extension of Time to File Reply to Motion to Compel or for Sanctions. Plaintiff shall file his reply no later than October 31, 2012. By Magistrate Judge Kathleen M. Tafoya on 10/23/12. Text Only Entry(kmtlc1) (Entered: 10/23/2012)
10/26/2012	86	Unopposed MOTION for Extension of Time to <i>File Dispositive Motions</i> by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 10/26/2012)
10/29/2012	87	MEMORANDUM regarding 86 Unopposed MOTION for Extension of Time to <i>File Dispositive Motions</i> filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 10/29/2012. Text Only Entry (eseam) (Entered: 10/29/2012)
10/30/2012	88	MINUTE ORDER granting 86 Motion for Extension of Time to File Dispositive Motions. The Dispositive Motions Deadline is extended to 11/12/2012. By Magistrate Judge Kathleen M. Tafoya on 10/30/2012. Text Only Entry (kmtlc2) (Entered: 10/30/2012)
10/31/2012	89	REPLY to Response to 73 MOTION for Sanctions filed by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit)(Mosby, John) (Entered: 10/31/2012)
11/12/2012	90	MOTION for Summary Judgment by Defendant Patrick R. Donahoe. (Attachments: # 1 Ex. A - Ehrenshaft Declaration, # 2 Ex. A, Att. 1 - Nov. 25, 2009, Letter, # 3 Ex. A, Att. 2 - April 21-July 2, 2009, Email Chain, # 4 Ex. A, Att. 3 - May 13, 2009, Step B Decision, # 5 Ex. A, Att. 4 - Aug. 17, 2009, Step B Decision, # 6 Ex. A, Att. 5 - Oct. 21, 2009, Step B Decision, # 7 Ex. A, Att. 6 - Oct. 21, 2009, Step B Decision, # 8 Ex. A, Att. 7 - Oct. 29, 2009, Step B Decision, # 9 Ex. A, Att. 8 - Nov. 10, 2009, Step B Decision, # 10 Ex. A, Att. 9 - Nov. 10, 2009, Step B Decision, # 11 Ex. A, Att. 10 - Nov. 10, 2009, Step B Decision, # 12 Ex. A, Att. 11 - Nov. 23, 2009, Step B Decision, # 13 Ex. A, Att. 12 - Nov. 19, 2009, Email, # 14 Ex. A, Att. 13 - Nov. 24, 2009, Emails, # 15 Ex. A, Att. 14 - Nov. 24, 2009, Step B Decision, # 16 Ex. A, Att. 15 - Nov. 24, 2009, Step B Decision, # 17 Ex. A, Att. 16 - Randleman Atatements, # 18 Ex. A, Att. 17 - Pay records, # 19 Ex. A, Att. 18 - Dec. 15. 25, 2009, Email, # 20 Ex. A, Att. 19 - EEO Complaint - 4E-800-0070-10, # 21 Ex. A, Att. 20 - EEO Complaint - 4E-800-0119-10, # 22 Ex. B - Ehrenshaft Depo. Excerpts, # 23 Ex. C - Knight Declaration, # 24 Ex. C, Att. 1 - Oct. 15, 2009, Email Attaching Congressional Inquiry, # 25 Ex. C, Att. 2 - Certified Mail Tracking Information, # 26 Ex. C, Att. 3 - Certified Mail Tracking Information, # 27 Ex. C, Att. 4 - Emergency Placement letter, # 28 Ex. C, Att. 5 - Dec. 12, 2009, Emails, # 29 Ex. C, Att. 6 - Dec. 15, 2009, Email and Draft Settlement Agreement, # 30 Ex. C, Att. 7 - Dec. 15, 2009, Email, # 31 Ex. C, Att. 8 - Signed Settlement Agreement, # 32 Ex. D - Knight Depo. Excerpts, # 33 Ex. E - Smith Depo. Excerpts, # 34 Ex. F - Plaintiff's Interrogatory Response, # 35 Ex. G - Green Depo. Excerpts, # 36 Ex. H - Green Depo. Ex. 32 - August 14, 2008, EEO Complaint, # 37 Ex. I - Green Depo. Ex. 33 - May 14, 2009, EEO Informal Complaint, # 38 Ex. J - Green Depo. Ex. 34 - July 17, 2009, EEO Informal Complaint, # 39 Ex. K - Acknowledgment and Order, # 40 Ex. L - Notice of Right to File, # 41 Ex. M - Podio Depo. Excerpts, # 42 Ex. N - Mason Depo. Excerpts, # 43 Ex. O - Green Depo. Ex. 52 - Acknowledgement of Rights, # 44 Ex. P - Green Depo. Ex. 35 - March 22, 2010, EEO Infromal Complaint)(Cohen, Nathalie) (Entered: 11/12/2012)

11/20/2012	91	MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Motion Hearing held on 11/20/2012, granting in part and denying in part 73 Motion for Sanctions. Final Pretrial Conference set for 3/7/2013 09:45 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. FTR: Courtroom C-201. (kmtcd) (Entered: 11/21/2012)
11/29/2012	92	MOTION to Amend/Correct/Modify 91 Order on Motion for Sanctions,, Motion Hearing,, Set/Reset Deadlines/Hearings, by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 11/29/2012)
11/30/2012	93	MEMORANDUM regarding 92 MOTION to Amend/Correct/Modify 91 Order on Motion for Sanctions, Motion Hearing, Set/Reset Deadlines/Hearings, filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya, by Judge Lewis T. Babcock on 11/30/12. Text Only Entry. (sgrim) (Entered: 11/30/2012)
11/30/2012	94	OBJECTION/Appeal of Magistrate Judge Decision to District Court re 91 Order on Motion for Sanctions,, Motion Hearing,, Set/Reset Deadlines/Hearings, by Plaintiff Marvin Green. (Mosby, John) (Entered: 11/30/2012)
12/03/2012	95	MINUTE ORDER: Plaintiff shall file a response to 92 MOTION to Revise the Court's November 20, 2012, Order no later than December 10, 2012. Defendant shall file a reply no later than December 14, 2012. By Magistrate Judge Kathleen M. Tafoya on 12/3/12. Text Only Entry (kmtlc1) (Entered: 12/03/2012)
12/03/2012	96	MINUTE ORDER re: 94 Plaintiff's OBJECTION and Appeal of Magistrate Judge's Order Dated November 20, 2012. Defendant has up to and including 12/17/2012 to file a response, by Judge Lewis T. Babcock on 12/3/2012. (eseam) (Entered: 12/03/2012)
12/03/2012	97	Second MOTION for Sanctions by Plaintiff Marvin Green. (Attachments: # 1 Exhibit) (Mosby, John) (Entered: 12/03/2012)
12/04/2012	98	MINUTE ORDER re: 97 Plaintiff's MOTION for Sanctions Based on Court's Order. Defendant has up to and including 12/18/2012 to file a response, by Judge Lewis T. Babcock on 12/4/2012. (eseam) (Entered: 12/04/2012)
12/05/2012	99	RESPONSE to 92 MOTION to Amend/Correct/Modify 91 Order on Motion for Sanctions,, Motion Hearing,, Set/Reset Deadlines/Hearings, filed by Plaintiff Marvin Green. (Mosby, John) (Entered: 12/05/2012)
12/14/2012	100	REPLY to Response to 92 MOTION to Amend/Correct/Modify 91 Order on Motion for Sanctions,, Motion Hearing,, Set/Reset Deadlines/Hearings, filed by Defendant Patrick R. Donahoe. (Cohen, Nathalie) (Entered: 12/14/2012)
12/14/2012	101	ORDER denying 92 Defendant's Motion to Revise the Court's November 20, 2012, Order, by Magistrate Judge Kathleen M. Tafoya on 12/14/12.(mjgsl,) (Entered: 12/17/2012)
12/17/2012	102	RESPONSE to 94 Objection/Appeal of Magistrate Judge Decision filed by Defendant Patrick R. Donahoe. (Attachments: # 1 Declaration of Tonya Kennish, # 2 Declaration of Charmaine Ehrenshaft)(Cohen, Nathalie) (Entered: 12/17/2012)
12/18/2012	103	RESPONSE to 97 Second MOTION for Sanctions filed by Defendant Patrick R. Donahoe. (Attachments: # 1 Attachment 1 - MSPB Order, # 2 Declaration of Kimberly Cates, # 3 Declaration of Roderick Eves)(Cohen, Nathalie) (Entered: 12/18/2012)
12/18/2012	104	STRICKEN-BRIEF in Opposition to 90 MOTION for Summary Judgment filed by Plaintiff Marvin Green. (Mosby, John) Modified on 12/20/2012 to strike the document pursuant to the 12/20/12 Minute Order (eseam). (Entered: 12/18/2012)

12/19/2012	105	MOTION to Clarify re 104 Brief in Opposition to Motion by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 12/19/2012)
12/19/2012	106	BRIEF in Opposition to 90 MOTION for Summary Judgment filed by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit, # 11 Exhibit, # 12 Exhibit, # 13 Exhibit, # 14 Exhibit, # 15 Exhibit, # 16 Exhibit, # 17 Exhibit, # 18 Exhibit, # 19 Exhibit, # 20 Exhibit, # 21 Exhibit, # 22 Exhibit, # 23 Exhibit, # 24 Exhibit, # 25 Exhibit, # 26 Exhibit, # 27 Exhibit, # 28 Exhibit, # 29 Exhibit, # 30 Exhibit, # 31 Exhibit, # 32 Exhibit)(Mosby, John) (Entered: 12/19/2012)
12/19/2012	107	BRIEF in Opposition to 105 MOTION to Clarify re 104 Brief in Opposition to Motion filed by Plaintiff Marvin Green. (Attachments: # 1 Appendix, # 2 Appendix)(Mosby, John) (Entered: 12/19/2012)
12/19/2012	108	MINUTE ORDER: Plaintiff has up to and including 1/2/2013 to file a reply to Defendant's Response to Objection re: Magistrate Judge Tafoya's 11/20/12 Order. A Hearing on Plaintiff's Objection/Appeal of Magistrate Judge Decision re: Order on Motion for Sanctions 94 is set for 1/24/2013 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 12/19/2012. (eseam) (Entered: 12/19/2012)
12/20/2012	109	MINUTE ORDER granting 105 Plaintiff's Motion to Refile Summary Judgment Response with Exhibits. Document 104 is stricken and replaced with Document 106, by Judge Lewis T. Babcock on 12/20/2012. (eseam) (Entered: 12/20/2012)
01/02/2013	110	MOTION for Discovery /Additional by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Proposed Order (PDF Only))(Mosby, John) (Entered: 01/02/2013)
01/02/2013	111	First MOTION for Extension of Time to File Response/Reply as to 94 OBJECTION/Appeal of Magistrate Judge Decision to District Court re 91 Order on Motion for Sanctions., Motion Hearing., Set/Reset Deadlines/Hearings, by Plaintiff Marvin Green., 97 Second MOTION for Sanctions by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 01/02/2013)
01/03/2013	112	MEMORANDUM regarding 110 MOTION for Discovery /Additional filed by Marvin Green. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 1/3/2013. Text Only Entry (eseam) (Entered: 01/03/2013)
01/03/2013	113	MINUTE ORDER granting 111 Plaintiff's Unopposed Motion for an Extension of Time to File Replies to Defendant's Responses, up to and including 1/8/2013, by Judge Lewis T. Babcock on 1/3/2013. (eseam) (Entered: 01/03/2013)
01/03/2013	114	Unopposed MOTION for Extension of Time to File Response/Reply as to 90 MOTION for Summary Judgment by Defendant Patrick R. Donahoe. (Attachments: # 1 Proposed Order (PDF Only))(Cohen, Nathalie) (Entered: 01/03/2013)
01/04/2013	115	MINUTE ORDER granting 114 Defendant's Unopposed Motion for an Extension of Time to File Reply in Support of Motion for Summary Judgment, up to and including 1/11/2013, by Judge Lewis T. Babcock on 1/4/2013. (eseam) (Entered: 01/04/2013)
01/04/2013	116	MINUTE ORDER: Defendant shall file his response to 110 MOTION for Additional Discovery no later than January 9, 2013. Plaintiff shall file a reply no later than January 16, 2013. By Magistrate Judge Kathleen M. Tafoya on 1/4/13. Text Only Entry (kmtlc1) (Entered: 01/04/2013)

01/08/2013	117	REPLY to Response to 94 OBJECTION/Appeal of Magistrate Judge Decision to District Court re 91 Order on Motion for Sanctions,, Motion Hearing,, Set/Reset Deadlines/Hearings, by Plaintiff Marvin Green. filed by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit)(Mosby, John) (Entered: 01/08/2013)
01/08/2013	118	MOTION to Alter Judgment re 117 Reply to Response to Motion, , MOTION to Amend/Correct/Modify , MOTION to Withdraw Document <i>Exhs 5, 6 & 10 (Doc 117)</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Proposed Order (PDF Only))(Mosby, John) (Entered: 01/08/2013)
01/08/2013	119	REPLY to Response to 97 Second MOTION for Sanctions filed by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit)(Mosby, John) (Entered: 01/08/2013)
01/09/2013	120	DECLARATION of <i>Roderick Eves</i> regarding Response to Motion 103 by Defendant Patrick R. Donahoe. (Attachments: # 1 Declaration of Roderick Eves)(Cohen, Nathalie) (Attachment 1 replaced on 1/9/2013) (eseam,). (Entered: 01/09/2013)
01/09/2013	121	MINUTE ORDER granting 118 Plaintiff's Motion to Replace Exhibits 5, 6, and 10, Which are Part of Doc 117, with Proper Redacted Exhibits, by Judge Lewis T. Babcock on 1/9/2013. (eseam) (Entered: 01/09/2013)
01/09/2013	122	RESPONSE to 110 MOTION for Discovery / <i>Additional</i> filed by Defendant Patrick R. Donahoe. (Attachments: # 1 Declaration of Kimberly Cates)(Cohen, Nathalie) (Entered: 01/09/2013)
01/09/2013	123	TRANSCRIPT of Motions Hearing held on November 20, 2012 before Magistrate Judge Tafoya. Pages: 1-84. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 4/12/2013. (Avery Woods Reporting,) (Entered: 01/09/2013)
01/11/2013	124	REPLY to Response to 90 MOTION for Summary Judgment filed by Defendant Patrick R. Donahoe. (Attachments: # 1 Ex. AA - Green Depo. Excerpts, # 2 Ex. BB - Green Depo. Ex 40 - Grievance Chart, # 3 Ex. CC - Ehrenshaft Depo. Excerpts, # 4 Ex. DD - Knight Depo. Excerpts, # 5 Ex. EE - Podio Depo. Excerpts)(Cohen, Nathalie) (Entered: 01/11/2013)
01/14/2013	125	REPLY to Response to 110 MOTION for Discovery / <i>Additional</i> filed by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 01/14/2013)
01/24/2013	126	Courtroom Minutes for Motion Hearing held before Judge Lewis T. Babcock held on 1/24/2013. Ordered that Plaintiff's Objection and Appeal of Magistrate Judge's Order 94 is Reversed. Written Order to follow. Ordered that Plaintiff's Second Motion for Sanctions 97 is Granted. Ordered that Plaintiff's Motion for Additional Discovery 110 is Denied as Moot. Hearing Concluded. Court Reporter: Mary George. (jjhsl,) (Main Document 126 replaced on 1/24/2013) (jjhsl,). (Entered: 01/24/2013)

01/24/2013	128	ORDER re: Plaintiff Marvin Green's Objection and Appeal of Magistrate Judges Order Dated November 20, 2012 (Doc. 91) 94 . ORDERED that The Magistrate Judge's Order 91 is REVERSED. Additionally, Plaintiff's motion for sanctions 97 is GRANTED, by Judge Lewis T. Babcock on 1/24/13. (sgrim) (Entered: 01/25/2013)
01/25/2013	127	MINUTE ORDER. This will confirm that pursuant to rulings made in open court on January 24, 2013, Plaintiff's Motion for Additional Discovery 110 is DENIED AS MOOT, by Judge Lewis T. Babcock on 1/25/13. (sgrim) (Entered: 01/25/2013)
02/04/2013	129	ORDER granting 90 Defendant's Motion for Summary Judgment. This action is dismissed and Defendant is awarded costs, by Judge Lewis T. Babcock on 2/4/2013. (eseam) (Entered: 02/04/2013)
02/04/2013	130	NOTICE of Entry of Appearance by May E. Kim on behalf of Patrick R. Donahoe (Kim, May) (Entered: 02/04/2013)
02/05/2013	131	Unopposed MOTION to Withdraw as Attorney by Defendant Patrick R. Donahoe. (Attachments: # 1 Proposed Order (PDF Only))(Cohen, Nathalie) (Entered: 02/05/2013)
02/06/2013	132	MINUTE ORDER granting 131 Unopposed Motion to Withdraw as Counsel. Nathalie Cohen is allowed to withdraw as counsel for Defendant herein, by Judge Lewis T. Babcock on 2/6/2013. (eseam) (Entered: 02/06/2013)
02/07/2013	133	FINAL JUDGMENT re: 129 Order on Motion for Summary Judgment, by Clerk on 2/7/13. (sgrim) (Entered: 02/07/2013)
02/15/2013	134	Proposed Bill of Costs by Defendant Patrick R. Donahoe. (Kim, May) (Entered: 02/15/2013)
02/19/2013	135	TRANSCRIPT of Motions Hearing held on January 24, 2013 before Judge Babcock. Pages: 1-36. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 5/23/2013. (George, Mary) (Entered: 02/19/2013)
03/01/2013	136	STIPULATION <i>on Bill of Costs</i> by Defendant Patrick R. Donahoe. (Kim, May) (Entered: 03/01/2013)
03/06/2013	137	Costs Taxed in amount of \$ \$3001.00 against Plaintiff. (sgrim) (Entered: 03/06/2013)
03/08/2013	138	NOTICE OF APPEAL as to 133 Clerk's Judgment by Plaintiff Marvin Green (Filing fee \$ 455, Receipt Number 1082-3260827) (Mosby, John) (Entered: 03/08/2013)
03/11/2013	139	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 138 Notice of Appeal filed by Marvin Green to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record)(lswsl) (Entered: 03/11/2013)
03/11/2013	140	USCA Case Number 13-1096 for 138 Notice of Appeal filed by Marvin Green. (lswsl) (Entered: 03/11/2013)
03/25/2013	141	TRANSCRIPT ORDER FORM re 138 Notice of Appeal by Plaintiff Marvin Green (Mosby, John) (Entered: 03/25/2013)

03/25/2013	142	LETTER TO USCA and all counsel certifying the record is complete as to 138 Notice of Appeal filed by Marvin Green. A transcript order form was filed stating that the necessary transcript is already on file. (Appeal No. 13-1096) Text Only Entry. (lsWSl) (Entered: 03/25/2013)
07/28/2014	143	USCA OPINION as to 138 Notice of Appeal filed by Marvin Green : We AFFIRM the district courts dismissal of the claims based on the investigative interview letter, the investigative interview itself, the threat of criminal charges, and the alleged constructive discharge. We REVERSE summary judgment for Defendant on the emergency-placement claim, and we REMAND for proceedings consistent with this opinion. (USCA Case No. 13-1096) (This document is not the Mandate) (dbrow,) (Additional attachment(s) added on 7/29/2014: # 1 Judgment) (dbrow,). (Entered: 07/29/2014)
09/19/2014	144	MANDATE of USCA as to 138 Notice of Appeal filed by Marvin Green (USCA Case No. 13-1096) (dkals,) (Entered: 09/19/2014)
10/20/2014	145	NOTICE of Entry of Appearance by Jacob Licht-Steenfat on behalf of Patrick R. DonahoeAttorney Jacob Licht-Steenfat added to party Patrick R. Donahoe(pty:dft) (Licht-Steenfat, Jacob) (Entered: 10/20/2014)
12/23/2014	146	NOTICE of Entry of Appearance by Katherine Ann Ross on behalf of Patrick R. DonahoeAttorney Katherine Ann Ross added to party Patrick R. Donahoe(pty:dft) (Ross, Katherine) (Entered: 12/23/2014)
02/04/2015	147	Unopposed MOTION to Withdraw <i>As Counsel</i> by Defendant Patrick R. Donahoe. (Licht-Steenfat, Jacob) (Entered: 02/04/2015)
02/05/2015	148	MINUTE ORDER granting 147 Unopposed Motion to Withdraw as Counsel. Jacob Licht-Steenfat is allowed to withdraw as counsel for Defendant herein, by Judge Lewis T. Babcock on 2/5/2015. (ebuch) (Entered: 02/05/2015)
06/24/2016	149	ORDER of USCA as to 138 Notice of Appeal filed by Marvin Green. (USCA Case No. 13-1096) (dkals,) (Entered: 06/24/2016)
10/24/2016	150	USCA Order and Judgment as to 138 Notice of Appeal filed by Marvin Green: reversed and remanded in part. (USCA Case No. 13-1096) (This document is not the Mandate) (dkals,) (Entered: 10/24/2016)
12/16/2016	151	MANDATE of USCA as to 138 Notice of Appeal filed by Marvin Green (USCA Case No. 13-1096) (dkals,) (Entered: 12/16/2016)
02/06/2017	152	NOTICE of Change of Address/Contact Information by Katherine Ann Ross (Ross, Katherine) (Entered: 02/06/2017)
02/27/2017	153	MOTION for Hearing/Conference by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 02/27/2017)
02/27/2017	154	MINUTE ORDER: Status/Scheduling Hearing set for 4/24/2017 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 2/27/2017. (ebuch) (Entered: 02/27/2017)
02/28/2017	155	ORDER of Reference to United States Magistrate Judge Kathleen M. Tafoya, by Judge Lewis T. Babcock on 2/28/2017. (ebuch) (Entered: 02/28/2017)
02/28/2017	156	ORDER Setting Settlement Conference for 3/27/2017 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya, by Magistrate Judge Kathleen M. Tafoya on 2/28/17. (sgrim) (Entered: 02/28/2017)
03/01/2017	157	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 153 MOTION for Hearing/Conference filed by attorney

		John Mosby. The document was scanned and not converted directly to portable document format (PDF). DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 1.3(f) of the Electronic Case Filing Procedures (Civil Cases). (Text Only Entry) (agarc,) (Entered: 03/01/2017)
03/07/2017	158	Joint MOTION to Reset <i>Settlement Conference</i> by Defendant Patrick R. Donahoe. (Ross, Katherine) (Entered: 03/07/2017)
03/08/2017	159	MEMORANDUM regarding 158 Joint MOTION to Reset <i>Settlement Conference</i> filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Lewis T. Babcock on 3/8/2017. Text Only Entry (ebuch) (Entered: 03/08/2017)
03/08/2017	160	MINUTE ORDER granting 158 Motion to Reset Settlement Conference. The Settlement Conference set for March 27, 2017, is vacated, to be reset by separate order. By Magistrate Judge Kathleen M. Tafoya on 3/8/17. Text Only Entry (kmtlc1) (Entered: 03/08/2017)
03/08/2017	161	AMENDED ORDER RESETTNG SETTLEMENT CONFERENCE: Settlement Conference set for 5/8/2017 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya, by Magistrate Judge Kathleen M. Tafoya on 3/8/2017. (jgonz,) (Entered: 03/08/2017)
04/19/2017	162	MOTION for Leave to Appear <i>by Telephone</i> by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 04/19/2017)
04/19/2017	163	MINUTE ORDER granting 162 Plaintiff's Unopposed Motion to Appear by Telephone, by Judge Lewis T. Babcock on 4/19/2017. (ebuch) (Entered: 04/19/2017)
04/24/2017	164	COURTROOM MINUTES for Status/Scheduling Hearing held before Judge Lewis T. Babcock on 4/24/2017. Status Report due by 5/16/2017. Court Reporter: Janet Coppock. (ebuch) (Entered: 04/24/2017)
04/24/2017	165	ORDER: The parties shall file a joint Status Report to the Court on or before 5/16/2017, reporting on the settlement progress in this case, by Judge Lewis T. Babcock on 4/24/2017. (ebuch) (Entered: 04/24/2017)
05/05/2017	166	SECOND AMENDED ORDER Resetting Settlement Conference for 6/27/2017 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya, by Magistrate Judge Kathleen M. Tafoya on 5/5/17. (sgrim,) Modified on 5/5/2017 to correct title of order. sgrim,) (Entered: 05/05/2017)
05/08/2017	167	Unopposed MOTION to Withdraw as Attorney by Defendant Patrick R. Donahoe. (Attachments: # 1 Proposed Order (PDF Only))(Ross, Katherine) (Entered: 05/08/2017)
05/09/2017	168	MINUTE ORDER granting 167 Unopposed Motion to Withdraw Attorney. May Kim is allowed to withdraw as counsel for Defendant herein, by Judge Lewis T. Babcock on 5/9/2017. (ebuch) (Entered: 05/09/2017)
05/17/2017	169	Joint STATUS REPORT by Defendant Patrick R. Donahoe. (Ross, Katherine) (Entered: 05/17/2017)
06/22/2017	170	Joint MOTION to Vacate 166 Order, <i>Settlement Conference</i> by Defendant Patrick R. Donahoe. (Ross, Katherine) (Entered: 06/22/2017)
06/23/2017	171	MEMORANDUM regarding 170 Joint MOTION to Vacate 166 Order, <i>Settlement Conference</i> filed by Patrick R. Donahoe. Motion referred to Magistrate Judge Kathleen M. Tafoya, by Judge Lewis T. Babcock on 06/23/2017. Text Only Entry (angar,) (Entered: 06/23/2017)

06/23/2017	172	MINUTE ORDER granting 170 Motion to Vacate Settlement Conference. The Settlement Conference set for 6/27/17 is VACATED. By Magistrate Judge Kathleen M. Tafoya on 6/23/17. Text Only Entry (kmtlc2) (Entered: 06/23/2017)
08/01/2017	173	Joint MOTION for Hearing/Conference by Defendant Patrick R. Donahoe. (Ross, Katherine) (Entered: 08/01/2017)
08/02/2017	174	MINUTE ORDER granting 173 Joint Motion for Status Conference. Status/Scheduling Hearing set for 8/24/2017 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 8/2/2017. (ebuch) (Entered: 08/02/2017)
08/24/2017	175	COURTROOM MINUTES for Status/Scheduling Hearing held before Judge Lewis T. Babcock on 8/24/2017. Final Pretrial Conference set for 10/5/2017 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock. Proposed Pretrial Order due by 10/2/2017. On or before 10/2/2017, counsel shall email to chambers individual draft proposed jury instructions as to the elements of the two remaining claims. Defendant's Oral Motion to Renew Defendant's Motion for Summary Judgment 90 is granted. Court Reporter: Tammy Hoffschildt. (ebuch) (Entered: 08/24/2017)
08/24/2017	176	ORDER: Pretrial Conference is set for 10/5/2017 at 9:00 AM in Courtroom C401 before Judge Lewis T. Babcock. On or before 10/2/2017, the parties shall file a single jointly-filed Proposed Pre-Trial Order and individual draft jury instructions. Upon oral motion by Defendant, Defendant's Motion for Summary Judgment 90 is renewed, by Judge Lewis T. Babcock on 8/24/2017. (ebuch) (Entered: 08/24/2017)
08/27/2017	177	NOTICE of Entry of Appearance by Brian S. Wolfman on behalf of Marvin GreenAttorney Brian S. Wolfman added to party Marvin Green(pty:pla) (Wolfman, Brian) (Entered: 08/27/2017)
09/13/2017	178	ORDER. For the reasons stated, I DENY the Motion for Summary Judgment, previously filed by Defendant on November 12, 2012 [Doc # 90], as renewed based on Defendant's request in open court on August 24, 2017. [Doc # 175] by Judge Lewis T. Babcock on 09/13/2017. (angar,) (Entered: 09/13/2017)
09/25/2017	179	Unopposed MOTION to Reset <i>Final Pretrial Conference</i> by Defendant Patrick R. Donahoe. (Ross, Katherine) (Entered: 09/25/2017)
09/25/2017	180	NOTICE of Entry of Appearance by Sarah Hunter Weiss on behalf of Patrick R. DonahoeAttorney Sarah Hunter Weiss added to party Patrick R. Donahoe(pty:dft) (Weiss, Sarah) (Entered: 09/25/2017)
09/26/2017	181	MINUTE ORDER. Defendant's Unopposed Motion to Reset Final Pretrial Conference (Doc 179 - filed September 25, 2017) is GRANTED . The Pretrial Conference set Thursday, October 5, 2017 is VACATED and RESET for Tuesday, October 31, 2017 at 9:00 a.m. in Courtroom C-401, Byron G. Rogers United States Courthouse, 1929 Stout Street, Denver, Colorado, by Judge Lewis T. Babcock on 09/26/2017. (angar,) (Entered: 09/26/2017)
10/24/2017	182	MINUTE ORDER: Pretrial Conference reset for 11/15/2017 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 10/24/2017. (ebuch) (Entered: 10/24/2017)
10/24/2017	183	AMENDED MINUTE ORDER: Pretrial Conference reset for 11/28/2017 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock. The documents referenced in the Order 176 are due on or before 11/22/2017, by Judge Lewis T. Babcock on 10/24/2017. (ebuch) (Entered: 10/24/2017)

11/22/2017	184	Proposed Pretrial Order by Defendant Patrick R. Donahoe. (Attachments: # 1 Continuation of Main Document Plaintiff's Exhibit List, # 2 Continuation of Main Document Defendant's Exhibit List)(Ross, Katherine) (Entered: 11/22/2017)
11/22/2017	185	Proposed Jury Instructions by Defendant Patrick R. Donahoe. (Ross, Katherine) (Entered: 11/22/2017)
11/24/2017	186	MOTION for Extension of Time to <i>File Jury Instructions</i> by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 11/24/2017)
11/27/2017	187	Proposed Jury Instructions by Plaintiff Marvin Green. (Mosby, John) (Entered: 11/27/2017)
11/28/2017	188	COURTROOM MINUTES for Pretrial Conference held before Judge Lewis T. Babcock on 11/28/2017. The Pretrial Order is approved and will be filed with the corrections made of record. A written order will enter as to the special issues raised in the Pretrial Order. Counsel shall hold a joint exhibit conference and file revised exhibit lists by 12/21/2017. On or before 12/21/2017, counsel shall file revised witness lists and email proposed jury instructions. Preliminary Trial Preparation Conference set for 1/23/2018 at 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock. Court Reporter: Tracy Weir. (ebuch) (Entered: 11/28/2017)
11/28/2017	190	PRETRIAL ORDER by Judge Lewis T. Babcock on 11/28/2017. (Attachments: # 1 Plaintiff's Exhibit List, # 2 Defendant's Exhibit List) (ebuch) (Entered: 11/30/2017)
11/29/2017	189	ORDER pursuant to the Pretrial Conference held November 28, 2017, by Judge Lewis T. Babcock on 11/29/2017. (ebuch) (Entered: 11/29/2017)
12/21/2017	191	MOTION for Extension of Time to <i>file objections to Def Exhibits</i> by Plaintiff Marvin Green. (Attachments: # 1 Proposed Order (PDF Only))(Mosby, John) (Entered: 12/21/2017)
12/21/2017	192	Witness List <i>and Exhibit List</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit)(Mosby, John) (Entered: 12/21/2017)
12/21/2017	193	Witness List & <i>Revised Exhibit List</i> by Defendant Patrick R. Donahoe. (Attachments: # 1 Exhibit A (Defendant's Revised Witness List), # 2 Exhibit B (Defendant's Revised Exhibit List))(Ross, Katherine) (Entered: 12/21/2017)
12/22/2017	194	MINUTE ORDER. Plaintiff's Unopposed Motion for Extension of Time to Submit Objections to Defendant's Exhibit List (Doc 191 - filed December 21, 2017) is GRANTED up to and including January 2, 2018, by Judge Lewis T. Babcock on 12/22/2017. (angar,) (Entered: 12/22/2017)
12/29/2017	195	Exhibit List (<i>Def</i>) <i>Admission and Objections</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit)(Mosby, John) (Entered: 12/29/2017)
01/03/2018	196	ORDER: Parties shall file short trial briefs on or before 1/15/2018 describing the general areas of disagreement related to their objections to the opposing parties' exhibits, by Judge Lewis T. Babcock on 1/3/2018. (ebuch) (Entered: 01/03/2018)
01/12/2018	197	TRIAL BRIEF by Defendant Patrick R. Donahoe. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Ross, Katherine) (Entered: 01/12/2018)
01/15/2018	198	TRIAL BRIEF <i>Relating to Plaintiff's Objections</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit)(Mosby, John) (Entered: 01/15/2018)
01/19/2018	199	TRIAL BRIEF <i>Motion to Supplement Trial Brief</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Proposed Order (PDF Only))(Mosby, John)

		(Entered: 01/19/2018)
01/19/2018	200	MINUTE ORDER granting 199 Plaintiff's Unopposed Motion to Supplement Trial Brief With Additional Exhibits, by Judge Lewis T. Babcock on 1/19/2018. (ebuch) (Entered: 01/19/2018)
01/22/2018	201	Unopposed MOTION to Reset <i>Preliminary Trial Preparation Conference</i> by Defendant Megan J. Brennan. (Attachments: # 1 Proposed Order (PDF Only))(Ross, Katherine) (Entered: 01/22/2018)
01/22/2018	202	MINUTE ORDER granting 201 Defendant's Motion to Reset Preliminary Trial Preparation Conference Due to Lapse in Congressional Appropriations. The Preliminary Trial Preparation Conference set 1/23/2018 is vacated, by Judge Lewis T. Babcock on 1/22/2018. (ebuch) (Entered: 01/22/2018)
01/23/2018	203	MINUTE ORDER: Defendant shall respond to Plaintiff's Trial Brief 198 and Plaintiff shall respond to Defendant's Trial Brief 197 by 2/6/2018. A hearing on the parties' objections to the proffered exhibits is set for 2/26/2018 at 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 1/23/2018. (ebuch) (Entered: 01/23/2018)
01/23/2018	204	STATUS REPORT by Defendant Megan J. Brennan. (Ross, Katherine) (Entered: 01/23/2018)
02/05/2018	205	MOTION for Extension of Time to <i>Respond to Plaintiff's Trial Brief</i> by Defendant Megan J. Brennan. (Weiss, Sarah) (Entered: 02/05/2018)
02/06/2018	206	MINUTE ORDER granting 205 Defendant's Unopposed Motion for Extension of Time to Respond to Plaintiff's Trial Brief, by Judge Lewis T. Babcock on 2/6/2018. (ebuch) (Entered: 02/06/2018)
02/06/2018	207	TRIAL BRIEF <i>Re Order dated 1/23/18</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit)(Mosby, John) (Entered: 02/06/2018)
02/12/2018	208	RESPONSE to <i>Plaintiff's Trial Brief re Exhibits</i> by Defendant Megan J. Brennan. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H)(Ross, Katherine) (Entered: 02/12/2018)
02/26/2018	209	COURTROOM MINUTES for Hearing on Objections to Exhibits held before Judge Lewis T. Babcock on 2/26/2018. Defendant's request to brief the issue of which other postal service employees might be appropriate comparators of the plaintiff is granted. Defendant's brief due 3/12/2018. Plaintiff's response brief due 3/19/2018. Hearing on the Comparator Question set for 4/12/2018 at 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock. Court Reporter: Tracy Weir. (ebuch) (Entered: 02/26/2018)
02/27/2018	210	MINUTE ORDER: Defendant's brief on the issue of which other postal service employees might be appropriate comparators of the Plaintiff is due 3/12/2018. Plaintiff's response is due 3/19/2018. A Hearing on the Comparator Question is set 4/12/2018 9:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 2/27/2018. (ebuch) (Entered: 02/27/2018)
03/02/2018	211	TRANSCRIPT of Pretrial Conference held on 11-28-17 before Judge Babcock. Pages: 1-25. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.

		
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tweir,) (Entered: 03/02/2018)
03/12/2018	212	RESTRICTED DOCUMENT - Level 1 - Defendant's Restricted Trial Brief : by Defendant Megan J. Brennan.. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O, # 16 Exhibit P, # 17 Exhibit Q, # 18 Exhibit R, # 19 Exhibit S, # 20 Exhibit T, # 21 Exhibit U, # 22 Exhibit V, # 23 Exhibit W, # 24 Exhibit X, # 25 Exhibit Y)(Ross, Katherine) Modified on 3/13/2018 to add title (angar,). (Entered: 03/12/2018)
03/19/2018	213	TRIAL BRIEF <i>Plaintiff's Response to Def. Trial Brief - Doc 212</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit) (Mosby, John) (Entered: 03/19/2018)
03/23/2018	214	MOTION for Leave to Restrict by Defendant Megan J. Brennan. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order, # 2 Proposed Document Dkt. 212 (Proposed Redactions), # 3 Proposed Document Dkt. 212-5 (Proposed Redactions), # 4 Proposed Document Dkt. 212-19 (Proposed Redactions), # 5 Proposed Document Dkt. 212-20 (Proposed Redactions), # 6 Proposed Document Dkt. 213 (Proposed Redactions), # 7 Proposed Document Dkt. 213-2 (Proposed Redactions), # 8 Proposed Document Dkt. 213-3 (Proposed Redactions), # 9 Proposed Document Dkt. 213-4 (Proposed Redactions)) (Weiss, Sarah) (Entered: 03/23/2018)
03/26/2018	215	ORDER granting 214 Defendant's Motion for Order to Restrict Access to Certain Information in Plaintiff's and Defendant's Trial Briefs on Comparators, by Judge Lewis T. Babcock on 3/26/2018. (ebuch) (Entered: 03/26/2018)
03/26/2018	216	REDACTED TRIAL BRIEF re: Comparators by Defendant Megan J. Brennan. (Attachments: # 1 Exhibit E, # 2 Exhibit S, # 3 Exhibit T) (ebuch) (Entered: 03/26/2018)
03/26/2018	217	REDACTED TRIAL BRIEF RESPONSE by Plaintiff Marvin Green. (Attachments: # 1 Exhibit 2, # 2 Exhibit 3, # 3 Exhibit 4) (ebuch) (Entered: 03/26/2018)
04/12/2018	218	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Judge Lewis T. Babcock: In Court Hearing held on 4/12/2018. Jury Trial set for 7/23/2018 AT 9:00 AM in Courtroom C401 before Judge Lewis T. Babcock with a Trial Preparation Conference on 7/13/2018 at 9:00 AM in Courtroom C401 before Judge Lewis T. Babcock. Court Reporter: Julie Thomas. (jdyne,) (Entered: 04/12/2018)
04/13/2018	219	ORDER. A Final Trial Preparation Conference is set for Friday, July 13, 2018 at 9:00 am. An eight-day jury trial is scheduled to commence on Monday, July 23, 2018 at 9:00 am, by Judge Lewis T. Babcock on 4/13/2018. (angar,) (Entered: 04/13/2018)
04/19/2018	220	MINUTE ORDER: Eight day Jury Trial reset for 7/30/2018 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 4/19/2018. (ebuch) (Entered: 04/19/2018)
07/09/2018	221	NOTICE of Entry of Appearance by Paige Campbell Anderson on behalf of Megan J. BrennanAttorney Paige Campbell Anderson added to party Megan J. Brennan(pty:dft) (Anderson, Paige) (Entered: 07/09/2018)
07/12/2018	222	Proposed Voir Dire by Plaintiff Marvin Green. (Moran, Elisa) (Entered: 07/12/2018)
07/12/2018	223	Exhibit List <i>and Witness List</i> by Plaintiff Marvin Green. (Attachments: # 1 Exhibit, # 2 Exhibit)(Mosby, John) (Entered: 07/12/2018)

07/12/2018	<u>224</u>	Witness List , <i>Exhibit List, Jury Instructions, and Voir Dire Questions</i> by Defendant Megan J. Brennan. (Attachments: # <u>1</u> Exhibit A (Defendant's Witness List), # <u>2</u> Exhibit B (Defendant's Exhibit List), # <u>3</u> Exhibit C (Defendant's Proposed Jury Instructions), # <u>4</u> Exhibit D (Defendant's Proposed Voir Dire Questions))(Ross, Katherine) (Entered: 07/12/2018)
07/13/2018	<u>225</u>	COURTROOM MINUTES for Trial Preparation Conference held before Judge Lewis T. Babcock on 7/13/2018. Court Reporter: Tracy Weir. (ebuch) (Entered: 07/13/2018)
07/16/2018	<u>226</u>	ORDER pursuant to the Trial Preparation Conference held on July 13, 2018, by Judge Lewis T. Babcock on 7/16/2018. (ebuch) (Entered: 07/16/2018)
07/23/2018	<u>227</u>	Exhibit List <i>Stipulation and Objections</i> by Plaintiff Marvin Green. (Attachments: # <u>1</u> Exhibit)(Mosby, John) (Entered: 07/23/2018)
07/23/2018	<u>228</u>	Exhibit List <i>Stipulations and Objections</i> by Defendant Megan J. Brennan. (Attachments: # <u>1</u> Exhibit)(Ross, Katherine) (Entered: 07/23/2018)
07/30/2018	<u>229</u>	MINUTE ENTRY for Jury Trial Day One held before Chief Judge Marcia S. Krieger on 7/30/2018. Jury selection. Trial continues. Court Reporter: Julie Thomas. (pglov) (Entered: 07/30/2018)
07/31/2018	<u>230</u>	ORDER. The above action is transferred to the Honorable Christine M. Arguello for trial and post-trial matters, by Judge Lewis T. Babcock on 7/31/2018. All future pleadings should be designated as 10-cv-2201-CMA (angar,) (Entered: 07/31/2018)
07/31/2018	231	Utility Setting Jury Trial. Jury Trial set for 7/31/2018 - 8/7/2018, at 08:00 AM in Courtroom A 602 before Judge Christine M. Arguello. Text Only Entry (cmasec) (Entered: 07/31/2018)
07/31/2018	232	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day Two held on 7/31/2018. Opening statements. WITNESS SWORN AND TESTIFIED: Marvin Green. EXHIBITS RECEIVED: 38, 6, 7, 67, 17, 45, 22, 26, 27, 29, 30, A-1, A-5, B-57, A-17, A-19, A-21, A-30, A-29, B-43. Jury excused for the day. Trial continued to 8/1/2018 at 8:00 a.m. (Total time: 6 Hours, 16 Minutes, Hearing time: 7:03 a.m. -- 2:30 p.m.) APPEARANCES: John Mosby, Elisa Moran, and Marilyn Gordon on behalf of the Plaintiff; Katherine Ann Ross, Sarah Weiss, and Paige Anderson on behalf of the Defendant. ALSO PRESENT: Marvin Green, Plaintiff; Mary Jane Galvin-Wagg, Representative for Postmaster General. Court Reporter: Darlene Martinez. (swest) Text Only Entry. Modified on 8/6/2018 to add admitted exhibit. (swest). (Entered: 07/31/2018)
08/01/2018	233	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day Three held on 8/1/2018. WITNESSES SWORN AND TESTIFIED: Marvin Green (continued); Robert Podio. EXHIBITS RECEIVED: B-44, B-97, B-75 (Pgs. US01779 & US01780), B-91, B-95, B-40, B-37, 32, A-78, 43, 1, 18, 34, 31, 25, 28, A-36, A-67. Jury excused for the day. Trial continued to 8/2/2018 at 8:00 a.m. (Total time: 6 Hours, 18 Minutes, Hearing time: 7:33 a.m. -- 2:52 p.m.) APPEARANCES: John Mosby, Elisa Moran, and Marilyn Gordon on behalf of the Plaintiff; Katherine Ann Ross, Sarah Weiss, and Paige Anderson on behalf of the Defendant. ALSO PRESENT: Marvin Green, Plaintiff; Mary Jane Galvin-Wagg, Representative for Postmaster General Court Reporter: Darlene Martinez. (swest) Text Only Entry. (swest). Modified on 8/8/2018 to correct exhibits (swest). (Entered: 08/01/2018)

08/02/2018	234	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day Four held on 8/2/2018. WITNESSES SWORN AND TESTIFIED: Jarman Smith, Richard Sprague, Charmaine Ehrenshaft. EXHIBITS RECEIVED: 19, 23, 75, 73, 40, 21, 69, A-3, B-11. Jury excused for the day. Trial continued to 8/3/2018 at 8:00 a.m. (Total time: 5 Hours, 48 Minutes, Hearing time: 8:02 a.m. -- 2:38 p.m.) APPEARANCES: John Mosby, Elisa Moran, and Marilyn Gordon on behalf of the Plaintiff; Sarah Weiss, and Katherine Ann Ross, and Paige Anderson on behalf of the Defendant. ALSO PRESENT: Marvin Green, Plaintiff; Mary Jane Galvin-Wagg, Representative for Postmaster General. Court Reporter: Darlene Martinez. (swest) Text Only Entry (Entered: 08/02/2018)
08/03/2018	235	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day Five held on 8/3/2018. WITNESSES SWORN AND TESTIFIED: Charmaine Ehrenshaft (continued), Gregory Godfrey, William Patrick Mason. EXHIBITS RECEIVED: B-12, A-24, A-22, A-62, A-61, A-28, A-28, A-25, B-17, A-54, A-47, A-50, A-52, A-45, A-40, A-18, 60, 9, A-26, 15. Jury excused for the day. Trial continued 8/6/2018. Total time: 5 Hours, 55 Minutes, Hearing time: 7:45 a.m. -- 2:25 p.m.) APPEARANCES: John Mosby, Elisa Moran, and Marilyn Gordon on behalf of the Plaintiff; Sarah Weiss, Katherine Ann Ross, and Paige Anderson on behalf of the Defendant. ALSO PRESENT: Marvin Green, Plaintiff; Mary Jane Galvin-Wagg, Representative for Postmaster General. Court Reporter: Darlene Martinez. (swest) Text Only Entry (Entered: 08/03/2018)
08/05/2018	236	NOTICE of Calling Expert Out of Order by Plaintiff Marvin Green (Mosby, John) (Entered: 08/05/2018)
08/06/2018	237	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day 6 held on 8/6/2018. WITNESSES SWORN AND TESTIFIED: Patricia Pacey, Kenneth Price, Erica Randleman, Abel Maes, Lora McLucas, Tonya Green, Robert Atwell. EXHIBITS RECEIVED: B-82, B-83, A-31 (Pg. 3). Jury excused for the day. ORDERED: DENYING Defendant's Oral Motion for Judgment as a Matter of Law Pursuant to Rule 50(a). Trial continued to 8/7/2018 at 8:00 a.m. (Total time: 5 Hours, 30 Minutes, Hearing time: 7:32 a.m. -- 2:07 p.m.) APPEARANCES: John Mosby, Elisa Moran, and Marilyn Gordon on behalf of the Plaintiff; Sarah Weiss, Katherine Ann Ross, and Paige Anderson on behalf of the Defendant. ALSO PRESENT: Marvin Green, Plaintiff; Mary Jane Galvin-Wagg, Representative for Postmaster General. Court Reporter: Darlene Martinez. (swest) Text Only Entry (Entered: 08/06/2018)
08/07/2018	238	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day Seven held on 8/7/2018. Charging Conference. WITNESSES SWORN AND TESTIFIED: Joanne Tafoya-Yarger, David Knight, Anita Works, Jory Laine, Bernard Linenberger. EXHIBITS RECEIVED: A-70, 68, B-84 (F and G), B-76, B-45, B-22. Jury excused for the day. Trial continued 8/8/2018 at 8:00 a.m. (Total time: 6 Hours, 21 Minutes, Hearing time: 7:30 p.m. -- 2:32 p.m.) APPEARANCES: John Mosby, Elisa Moran, and Marilyn Gordon on behalf of the Plaintiff; Sarah Weiss, Katherine Ann Ross, and Paige Anderson on behalf of the Defendant. ALSO PRESENT: Marvin Green, Plaintiff; Mary Jane Galvin-Wagg, Representative for Postmaster General. Court Reporter: Court Reporter. (swest) Text Only Entry (Entered: 08/07/2018)

08/08/2018	239	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day Eight completed on 8/8/2018. ORDERED: DENYING Defendant's Oral Motion for Judgment as a Matter of Law Pursuant to Rule 50(a). Jury instructed. Closing arguments. Deliberations began at 10:45 a.m. JURY VERDICT. Jury excused with the thanks of the Court. Trial concluded. FURTHER ORDERED lunch will be provided to the jury during their deliberations. FURTHER ORDERED counsel for the parties shall retain custody of their respective exhibits and depositions until such time as all need for the exhibits and depositions has terminated and the time to appeal has expired or all appellate proceedings have been terminated plus sixty days. (Total time: 3.0 Hours, Hearing time: 7:26 a.m. -- 1:19 p.m.) APPEARANCES: John Mosby, Elisa Moran, and Marilyn Gordon on behalf of the Plaintiff; Sarah Weiss, Katherine Ann Ross, and Paige Anderson on behalf of the Defendant. ALSO PRESENT: Marvin Green, Plaintiff; Mary Jane Galvin-Wagg, Representative for Postmaster General. Court Reporter: Darlene Martinez. (swest) Text Only Entry (Entered: 08/08/2018)
08/08/2018	240	Final Jury Instructions. (swest) (Entered: 08/08/2018)
08/08/2018	241	Jury Note. (swest) (Entered: 08/08/2018)
08/08/2018	242	JURY VERDICT FORM. (swest) (Entered: 08/08/2018)
08/08/2018	243	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (swest) (Entered: 08/08/2018)
08/08/2018	244	FINAL JUDGMENT in favor of Defendant, Megan J. Brennan, Postmaster General, United States Postal Service, and against Defendant, Marvin Green, by Clerk on 8/8/2018. (swest) (Entered: 08/08/2018)
08/22/2018	245	Proposed Bill of Costs by Defendant Megan J. Brennan. (Ross, Katherine) (Entered: 08/22/2018)
09/17/2018	246	STIPULATION <i>State of Conferral and Stipulation Regarding Defendant's Bill of Costs and Plaintiffs' Waiver of Appeal</i> by Defendant Megan J. Brennan. (Ross, Katherine) (Entered: 09/17/2018)
09/17/2018	247	Costs Not Taxed by Clerk - Costs withdrawn by Defendant Megan J. Brennan, pursuant to the parties' stipulation - see Docket No. 246 . Hearing date of Sept. 20, 2018 VACATED by Clerk. (ebutl) (Entered: 09/17/2018)
09/17/2018	248	Correction - Costs Not Taxed by Clerk - Costs withdrawn by Defendant Megan J. Brennan, pursuant to the parties' stipulation - see Docket No. 246. Hearing date of Sept. 27, 2018 VACATED by Clerk. (ebutl) [Costs hearing date corrected.](Entered: 09/17/2018) (Entered: 09/17/2018)

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